BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA -- SACRAMENTO DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive,** Defendants.	Case No. 2:26-cv-02847-DAD-CKD **[PROPOSED] ORDER DENYING DEFENDANT UNITED PARCEL SERVICE, INC.'S RULE 12(b)(6) MOTION TO DISMISS** Hearing: October 5, 2026 Time: 1:30 p.m. Courtroom: 4, 15th Floor Judge: Hon. Dale A. Drozd

Defendant United Parcel Service, Inc.'s Motion to Dismiss pursuant to Federal Rule of Civil Procedure 12(b)(6) (ECF No. 7) came on for hearing on October 5, 2026, in Courtroom 4 of this Court. Plaintiff BRENDAN NGEHSI NEWANFORBI appeared in propria persona. Defendant appeared through counsel. The Court, having considered the papers and arguments, and good cause appearing, ORDERS as follows:

1. Defendant's Motion to Dismiss is DENIED in its entirety.

2. In the alternative, if the Court does not deny the motion in full: the motion is DENIED as to the First, Third, Fourth, and Sixth Causes of Action; the Second and Fifth Causes of Action are DISMISSED WITH LEAVE TO AMEND; and Plaintiff shall file any amended complaint within twenty-one (21) days of this Order.

3. Defendant shall file a responsive pleading within the time provided by the Federal Rules of Civil Procedure.

IT IS SO ORDERED.

Dated: _____, 2026

_____

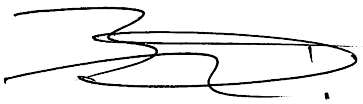
HON. DALE A. DROZD

United States District Judge

Presented by:

Dated: September 9, 2026

Respectfully submitted,



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BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

CERTIFICATE OF SERVICE

I am the Plaintiff in this action and am over the age of eighteen years. My electronic service address is bnn.cdl@gmail.com. On September 9, 2026, I served the foregoing [PROPOSED] ORDER DENYING DEFENDANT UNITED PARCEL SERVICE, INC.'S RULE 12(b)(6) MOTION TO DISMISS by placing a true and correct copy in a sealed envelope, with first-class postage fully prepaid, and depositing it with the United States Postal Service at San Jose, California, addressed as follows:

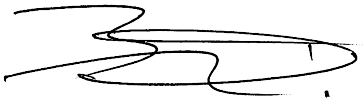
Vanessa W. Mott, Esq. (SBN 184606)
Alyssa R. Daskas, Esq. (SBN 359379)
MARTENSON, HASBROUCK & SIMON LLP
600 Anton Boulevard, Suite 1250
Costa Mesa, CA 92626
vmott@martensonlaw.com
adaskas@martensonlaw.com
Attorneys for Defendant United Parcel Service, Inc.

AND TO (address of record on the docket):
Vanessa W. Mott, Esq.
MARTENSON, HASBROUCK & SIMON LLP
5800 Armada Drive, Suite 101
Carlsbad, CA 92008

I also transmitted a true copy of the same document by electronic mail to vmott@martensonlaw.com and adaskas@martensonlaw.com.

I declare under penalty of perjury under the laws of the United States of America that the

foregoing is true and correct. Executed on September 9, 2026, at San Jose, California.



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